

Transfer Pricing Memo 2024

Background

(A) Acme AI Limited is a private company limited by shares incorporated in Ireland (Company Registration No. 678901) whose registered office is at 3rd Floor, The Merchants Building, Sir John Rogerson's Quay, Dublin 2, D02 X576, Ireland.

(B) The Company carries on the business of developing and licensing artificial intelligence software-as-a-service solutions for enterprise customers in the European Union, United Kingdom and North America.

(C) The Company has adopted this Transfer Pricing Memo 2024 in connection with its Series B financing and ongoing M&A due diligence process.

(D) The parties have agreed to enter into this Agreement on the terms set out below.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration (the receipt and sufficiency of which are hereby acknowledged), the parties agree as follows:

1. Definitions and Interpretation

1.1 "Company" means Acme AI Limited (Company Registration No. 678901) References to "Company" include, where the context permits, any successor or assignee thereof.

2.1 "Policy" means this Transfer Pricing Memo 2024 References to "Policy" include, where the context permits, any successor or assignee thereof.

3.1 "Compliance Officer" means the person appointed by the Board to oversee tax compliance References to "Compliance Officer" include, where the context permits, any successor or assignee thereof.

4.1 "Effective Date" means the date of Board approval of this Policy References to "Effective Date" include, where the context permits, any successor or assignee thereof.

5.1 "Group" means the Company and its subsidiaries from time to time References to "Group" include, where the context permits, any successor or assignee thereof.

2. Interpretation

In this Agreement, unless the context otherwise requires: (1) headings are for convenience only and do not affect interpretation; (2) words importing the singular include the plural and vice versa; (3) references to a person include bodies corporate, unincorporated associations and partnerships; (4) "Company" means Acme AI Limited (Company Registration No. 678901); (5) references to statutes or statutory provisions include any subordinate legislation and any modification, consolidation or re-enactment thereof; (6) references to writing include email where acknowledged by the recipient; (7) references to days are to calendar days unless stated as Business Days; (8) Business Day means a day on which banks are open for business in Dublin, Ireland and London, England; (9) any obligation on a party not to do something includes an obligation not to allow it to be done; (10) the words include and including are without limitation.

The Schedules form part of this Agreement and shall have the same force and effect as if set out in the body of this Agreement. In the event of conflict between the body and a Schedule, the body shall prevail unless the Schedule expressly states otherwise.

This Agreement has been negotiated at arm's length. Each party acknowledges that it has had the opportunity to obtain independent legal advice and that the doctrine of contra proferentem shall not apply in the construction or interpretation of this Agreement.

3. Scope and Application

3.1 This Policy applies to all directors, officers, employees, contractors and agents of the Group engaged in activities relating to tax compliance. Material exceptions require written approval of the Compliance Officer and General Counsel.

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3.10 This Policy applies to all directors, officers, employees, contractors and agents of the Group engaged in activities relating to tax compliance. Material exceptions require written approval of the Compliance Officer and General Counsel.

4. Operational Requirements

4.1 The Group shall maintain documented procedures, training programmes and periodic audits sufficient to demonstrate compliance with applicable laws and regulations concerning tax compliance. Metrics shall be reported to the Board Audit & Risk Committee quarterly.

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4.12 The Group shall maintain documented procedures, training programmes and periodic audits sufficient to demonstrate compliance with applicable laws and regulations concerning tax compliance. Metrics shall be reported to the Board Audit & Risk Committee quarterly.

5. Breach; Escalation; Review

Material breaches shall be escalated to the Board within five (5) Business Days. This Policy is reviewed annually and updated following material regulatory developments.

Schedule 1 — Supplemental Provisions

1.1 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.2 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.3 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.4 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.5 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.6 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.7 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.8 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes

remedied within twenty (20) Business Days of notice.

3.5 The parties agree supplemental terms regarding audit rights and penetration testing. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 3 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

3.6 The parties agree supplemental terms regarding audit rights and penetration testing. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 3 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

3.7 The parties agree supplemental terms regarding audit rights and penetration testing. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 3 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

3.8 The parties agree supplemental terms regarding audit rights and penetration testing. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 3 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

Appendix A — Defined Terms Cross-Reference

A.1 Cross-reference table entry 1: terms used in Sections 1–12 shall have meanings set out in clause 1 of the Definitions unless expressly varied in this Appendix.

A.2 Cross-reference table entry 2: terms used in Sections 1–12 shall have meanings set out in clause 2 of the Definitions unless expressly varied in this Appendix.

A.3 Cross-reference table entry 3: terms used in Sections 1–12 shall have meanings set out in clause 3 of the Definitions unless expressly varied in this Appendix.

A.4 Cross-reference table entry 4: terms used in Sections 1–12 shall have meanings set out in clause 4 of the Definitions unless expressly varied in this Appendix.

A.5 Cross-reference table entry 5: terms used in Sections 1–12 shall have meanings set out in clause 5 of the Definitions unless expressly varied in this Appendix.

A.6 Cross-reference table entry 6: terms used in Sections 1–12 shall have meanings set out in clause 6 of the Definitions unless expressly varied in this Appendix.

A.7 Cross-reference table entry 7: terms used in Sections 1–12 shall have meanings set out in clause 7 of the Definitions unless expressly varied in this Appendix.

A.8 Cross-reference table entry 8: terms used in Sections 1–12 shall have meanings set out in clause 8 of the Definitions unless expressly varied in this Appendix.

A.9 Cross-reference table entry 9: terms used in Sections 1–12 shall have meanings set out in clause 9 of the Definitions unless expressly varied in this Appendix.

A.10 Cross-reference table entry 10: terms used in Sections 1–12 shall have meanings set out in clause 10 of the Definitions unless expressly varied in this Appendix.

A.11 Cross-reference table entry 11: terms used in Sections 1–12 shall have meanings set out in clause 11 of the Definitions unless expressly varied in this Appendix.

A.12 Cross-reference table entry 12: terms used in Sections 1–12 shall have meanings set out in clause 12 of the Definitions unless expressly varied in this Appendix.